

FEDERAL MARITIME COMMISSION

IGOR OVCHINIKOV, IRINA
RZAEVA, AND DENIS NEKIPELOV
Complainants

KAIRAT NURGAZINOV
Claimant

v.

MICHAEL HITRINOV A/K/A
MICHAEL KHITRINOV, EMPIRE
UNITED LINES CO., INC., AND
CARCONT LTD.

Respondents

Consolidated Docket
Nos. 15-11 and 1953(I)

Served: April 10, 2017

BY THE COMMISSION: Michael A. KHOURI, Acting
Chairman, Commissioners Rebecca F. DYE, Mario CORDERO,
William P. DOYLE, and Daniel B. MAFFEI

Order Granting Complainants Second Motion in
Part for an Enlargement of Time to File
Exceptions and for Other Relief

This proceeding is before the Commission on the Administrative Law Judge's March 9, 2017 Initial Decision Granting Respondents' Motion for Judgment on the Pleadings. On March 20, 2017, the Commission partially granted Complainants motion to extend the time for filing exceptions and extended the deadline to April 17, 2017. On March 31, 2017, Complainants filed a Second Motion for an Enlargement of Time to File Exceptions and for Other Relief, seeking to further extend the time for filing exceptions from April 17, 2017, to May 3, 2017. On

April 6, 2017, Respondents filed a response that opposed granting Complainants a second enlargement of time to file exceptions and other relief.

The Complainants were previously granted a 17-day extension of time to file exceptions (nearly doubling the normal 22-day filing period). The Commission grants Complainants' motion to further extend the exceptions deadline to May 3, 2017. Further extensions will be reviewed with disfavor, and only granted if based on exceptional circumstances.

Complainants state in their motion that the extension is "for purposes of filing Exceptions and/or a Petition to Reopen the Proceedings." The Commission emphasizes that the filing of a motion to reopen the proceedings will not stay or postpone the deadline for filing exceptions. Regardless of any other request for relief Complainants may wish to file, exceptions must be filed no later than May 3, 2017. Complainants failure to comply with this order, including the periods for filing and the type of relief requested, may result in sanctions, including dismissal of the case.

THEREFORE, IT IS ORDERED, That Complainants Second Motion for an Enlargement of Time to File Exceptions and for Other Relief is granted in part.

IT IS ORDERED, That Complainants exceptions are due by May 3, 2017, and Respondents' replies are due May 25, 2017.

IT IS FURTHER ORDERED, That the time for the Commission to determine to review the Initial Decision in this matter is extended to May 11, 2017.

By the Commission.

Rachel E. Dickon
Assistant Secretary